

CITIZENSHIP

Constitution → statute → Assam → OCI → CAA → constitutional review

CURRENT LAW CHECKED 7 SEPTEMBER 2026

01 MEMBERSHIP AND RIGHTS

- Citizen-specific: Arts 15, 16, 19, 29
- Person-based: Arts 14, 20, 21, 25
- Vote is statutory; Art 30 says minorities
- Enemy-alien exception limited to Art 22(1)-(2)

TEXT CONTROLS STATUS

02 ONE CITIZENSHIP

- Citizenship = membership
- Domicile = permanent legal home
- Residence = factual presence
- Pradeep Jain: one Indian domicile; regional safeguards ≠ State citizenship

NO STATE CITI

03 ARTICLES 5-11

- Art 5: domicile + one connection
- Arts 6-7: Partition routes and exact dates
- Art 8: Indian origin abroad + registration
- Arts 9-10-11: disqualifier → continuity → Parliament

COMMENCEMENT ONLY

04 ACQUISITION MAP

- Birth · Descent · Registration
- Naturalisation · Incorporation
- Every route has date/category/procedure gates
- No automatic status from marriage, property, residence or identity card

FIVE ROU

The first step in the process is to identify the specific
 requirements for each type of visa. This involves
 understanding the different categories of visas and the
 specific criteria for each.

Once the requirements are identified, the next step is to
 gather the necessary documents. This typically includes
 a passport, a recent photograph, and a letter of
 invitation from a sponsor.

The final step is to submit the application and pay the
 required fees. This can be done online or at a
 consular office.

CONTROLS STATUS

The process of obtaining a visa can be a complex and
 time-consuming one. It is important to start the
 process well in advance of the intended travel date.

There are several factors that can affect the
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FIVE ROUTES

05 BIRTH / DESCENT DATES

- Birth: 1950–1987 | 1987–2004 | post-2004
- Descent: pre/post 10 Dec 1992
- From 3 Dec 2004: registration/declaration controls
- Illegal-migrant and Section 3(2) exceptions stay distinct

DATE-SENSITIVE

06 LOSS WITH SAFEGUARDS

- Renunciation = declaration
- Termination = voluntary foreign citizenship
- Deprivation = category + ground + public good + procedure
- Birth/descent citizens outside Section 10(1) opening gate

CATEGORY

07 ASSAM / SECTION 6A

- Pre-1966 deemed citizen
- 1966–before 25 Mar 1971: register + 10-year vote exclusion
- Post-cut-off: no Section 6A protection
- 17 Oct 2024: 4:1 valid; implementation monitored

1971 ≠ 2014

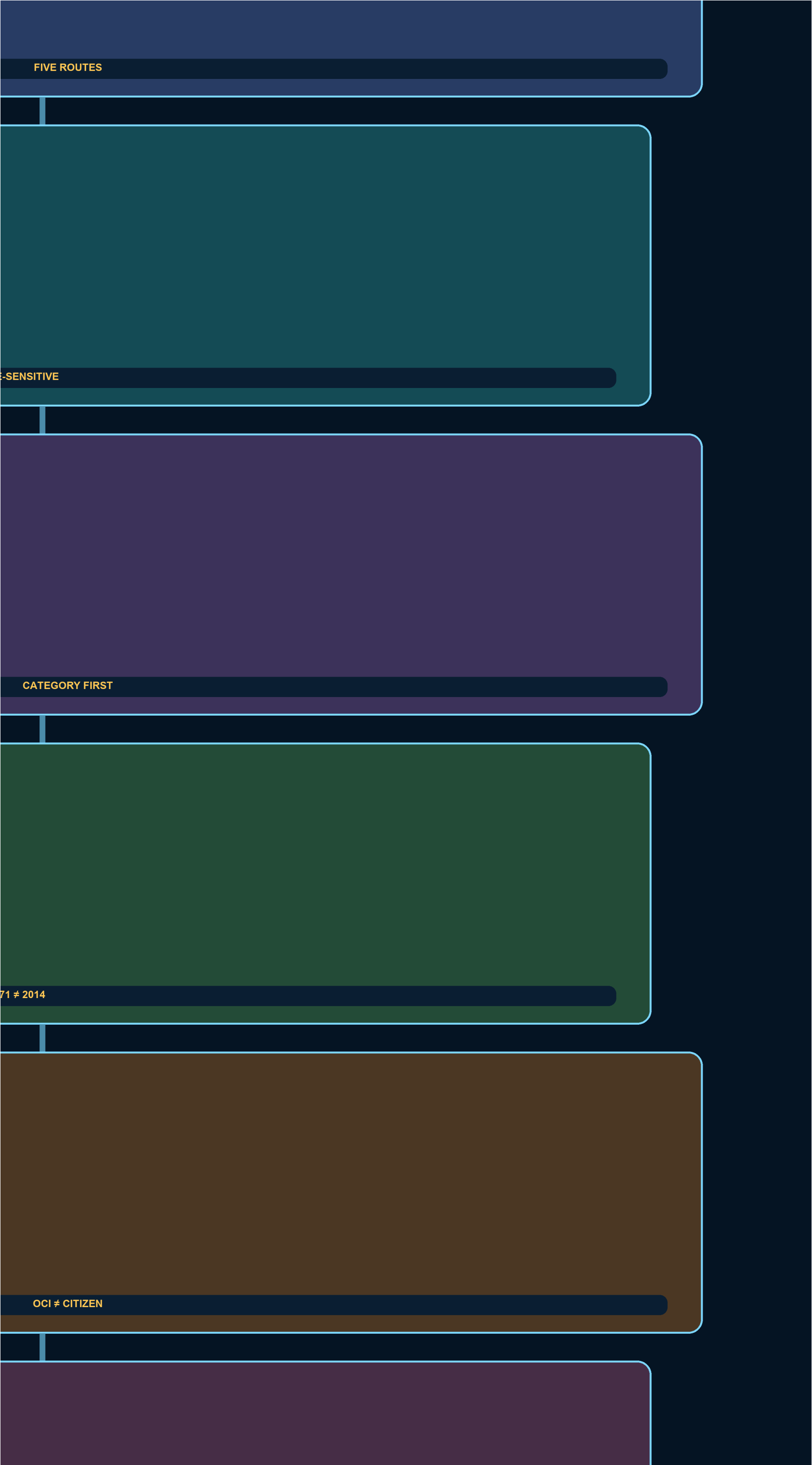
08 OCI / NRI / PIO

- NRI = citizen abroad; OCI = foreign national
- PIO card merged into OCI in 2015
- 2021 notified facilities but no political membership
- 11 Aug 2025 cancellation notification: sentence/charge-sheet thresholds

OCI ≠ CITIZENSHIP

09 CAA ELIGIBILITY

- 6 communities · 3 countries · 31 Dec 2014
- Exemption to registration turns out to be a



09 CAA ELIGIBILITY

- 6 communities · 3 countries · 31 Dec 2014
- Exemption + application + proof + oath + grant
- Not automatic citizenship
- Protected Sixth Schedule tribal areas + Inner Line areas excluded

NOT AUTOMATIC

10 CAA PROCEDURE

- 11 Mar 2024 Rules: electronic committee process
- 19 Aug 2026 G.S.R. 742(E): specified Collector route
- S.O. 4583(E): pending applications transferred
- Procedure changed; statutory class and cut-off unchanged

PROCESS ≠ ELIGIBILITY

11 EQUALITY AND BOUNDARIES

- Article 14: comparator → differentia → nexus → arbitrariness
- Humanitarian defence vs under-inclusion/secularism challenge
- Citizenship ≠ foreigners/passport/refugee/domicile law
- 7 Sep 2026: operative; no located final CAA merits judgment

PENDING ≠ DECIDED

12 PYQ AND ANSWER SPINE

- 2018 Q12 and 2021 Q89: exact wording; keys withheld
- 32 originals: ABCD × 8; 128 unique option explanations
- 10/15/20 marks: claim → evidence → analysis → qualification
- Conclusion: equal membership + lawful control + non-arbitrary classification

EXACT KEY DISCUSSION

INDIAN CITIZENSHIP IS CONSTITUTIONALLY FOUNDED, STATUTORY
Equal membership must coexist with lawful migration control, regional p

AUTOMATIC

PROCESS ≠ ELIGIBILITY

ING ≠ DECIDED

EXACT KEY DISCIPLINE

STATUTORILY ADMINISTERED AND JUDICIALLY REVIEWABLE.
regional protection, diaspora access and non-arbitrary classification.